

24STCV31938 24STCV31938

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-16

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Case Number: 24STCV31938 Hearing Date: September 16, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

STEPHON WATFORD

vs.

PROMISE ASSISTED LIVING, LLC

Case

No.: 24STCV31938

Hearing Date: September 16, 2026

Defendants' motion to compel Plaintiff's mental examination is
GRANTED.

On 12/4/2024,

Plaintiff Stephon Watford (Plaintiff) initiated this action. On 11/3/2025,
Plaintiff filed a first amended complaint against Promise Assisted Living, LLC,
Promise Hospice, Inc., Zulficar Gregory Restum, D'arolyn Azevedo, and Roxana
Aparicio alleging: (1) whistleblower retaliation; (2) retaliation and

discrimination; (3) wrongful termination; and (4) defamation.

On 8/11/2026, Defendants moved to
compel Plaintiff's mental examination.

Discussion

Defendants argue good cause exists
to compel the mental examination of Plaintiff as follows:

[Plaintiff] has testified under oath that he suffered severe emotional distress and has produced medical records attributing chronic hypertension that he now suffers to the actions of all five Defendants. This includes unrelenting emotional injuries and associated physical symptoms caused by Promise Assisted Living LLC's mandatory reporting of Plaintiff's suspected elder abuse, Plaintiff's claimed wrongful termination, and various other alleged defamatory statements he asserts were made about him by each of the five Defendants. The injuries that Plaintiff asserts he continues to experience are claimed to be permanent in nature and not fully understood by him. A mental exam by a licensed professional with the requisite experience in the diagnosis of emotional and mental disorders is needed to ascertain what is admittedly unknown by Plaintiff in order to enable the parties to prepare fully for trial.

(Motion, 2: 11-22.)

After review, the Court agrees.

Based on the foregoing, Defendants'
motion to compel Plaintiff's mental examination is granted.

It is so
ordered.

Dated:
September , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.